



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

SB 1431: municipalities; planned communities; design; prohibition

VOLK FLOOR AMENDMENT

1. Adds that the prohibited home design requirements do not supersede:
 - a. applicable building codes or fire codes, including specifications of building materials related to durability or suitability for weather; and
 - b. requirements for walls that are located on a road that is designed as an arterial road or a collector street as designated by an adopted municipal general plan.

ADDITIONAL COW
VOLK FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1431
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 9-461.15, Arizona Revised Statutes, is amended
3 to read:

4 9-461.15. Requirement of planned community; shared features;
5 prohibited; applicability; definitions

6 A. The planning agency of a municipality, in exercising its
7 authority pursuant to this title, shall not require as part of a
8 subdivision regulation or zoning ordinance that a subdivider or developer
9 establish ~~an~~ A HOMEOWNER'S association ~~as defined in section 33-1802~~. A
10 subdivider or developer shall not be penalized because a real estate
11 subdivision or development does not constitute or include a planned
12 community.

13 B. NOTWITHSTANDING ANY OTHER LAW, A MUNICIPALITY MAY NOT REQUIRE AS
14 PART OF A DEVELOPMENT OR SUBDIVISION EITHER OF THE FOLLOWING:

15 1. A SHARED FEATURE OR AMENITY THAT WOULD REQUIRE A HOMEOWNERS'
16 ASSOCIATION, A CONDOMINIUM ASSOCIATION OR ANY OTHER ASSOCIATION TO
17 MAINTAIN OR OPERATE THE FEATURE OR AMENITY, EXCEPT IF REQUIRED BY FEDERAL
18 LAW.

19 2. A GATE, WALL, FENCE OR OTHER PERIMETER ENCLOSURE OR ANY TYPE OF
20 CONTROLLED ACCESS.

21 ~~B.~~ C. A municipality may require a subdivider or developer to
22 establish ~~an~~ A HOMEOWNER'S association to maintain private, common or
23 ~~community-owned~~ COMMUNITY-OWNED improvements that are approved and
24 installed as part of a preliminary plat, final plat or specific plan. A
25 municipality shall not require that ~~an~~ A HOMEOWNER'S association be formed
26 or operated other than for the maintenance of common areas or ~~community~~
27 ~~owned~~ COMMUNITY-OWNED property. This subsection applies only to planned

1 communities that are established in plats recorded after ~~the effective~~
2 ~~date of this section~~ JULY 24, 2014.

3 ~~C.~~ D. This section does not limit the subdivider or developer in
4 the establishment or authority of any planned community established
5 pursuant to title 33, chapter 16 or limit a subdivider, a developer or ~~an~~
6 A HOMEOWNER'S association from requesting and entering into a maintenance
7 agreement with a municipality.

8 E. SUBSECTION B OF THIS SECTION DOES NOT SUPERSEDE APPLICABLE
9 BUILDING CODES, FIRE CODES OR PUBLIC HEALTH AND SAFETY REGULATIONS.

10 F. FOR THE PURPOSES OF THIS SECTION:

11 1. "CONDOMINIUM ASSOCIATION" MEANS AN ASSOCIATION AS DEFINED IN
12 SECTION 33-1202.

13 2. "HOMEOWNERS' ASSOCIATION" MEANS AN ASSOCIATION AS DEFINED IN
14 SECTION 33-1802.

15 Sec. 2. Title 9, chapter 4, article 6, Arizona Revised Statutes, is
16 amended by adding section 9-461.21, to read:

17 9-461.21. Planning; home design; restrictions; prohibition;
18 applicability; definitions

19 A. A MUNICIPALITY MAY NOT INTERFERE WITH A HOME BUYER'S RIGHT TO
20 CHOOSE THE FEATURES, AMENITIES, STRUCTURE, FLOOR PLAN AND INTERIOR AND
21 EXTERIOR DESIGN OF A HOME.

22 B. NOTWITHSTANDING ANY OTHER LAW, A MUNICIPALITY MAY NOT ADOPT OR
23 ENFORCE ANY CODE, ORDINANCE, REGULATION, STANDARD, STIPULATION OR OTHER
24 LEGAL REQUIREMENT THAT DIRECTLY OR INDIRECTLY ESTABLISHES ANY OF THE
25 FOLLOWING REQUIREMENTS FOR A SINGLE-FAMILY HOME OR AN ACCESSORY DWELLING
26 UNIT:

27 1. SCREENING, WALLS OR FENCES ON RESIDENTIAL PROPERTY.

28 2. AESTHETIC DESIGN STANDARDS OR DESIGN, ARCHITECTURAL OR AESTHETIC
29 ELEMENTS OR GUIDELINES AND REQUIREMENTS FOR ANY OF THE FOLLOWING:

30 (a) MATERIALS OR FINISHES, INCLUDING MINIMUM PERCENTAGES OF
31 MATERIAL OR FINISHES, OR SPECIFIED MATERIALS.

32 (b) COLORS OR COLOR PALETTES.

33 (c) WINDOW PLACEMENT, CONFIGURATION OR STYLE.

34 (d) ROOF FORM OR PITCH.

35 (e) FAÇADE DESIGN, ARTICULATION, NONSTRUCTURAL ORNAMENTATION OR
36 ARCHITECTURAL STYLE.

37 (f) LAYOUT, FLOOR PLAN OR CONFIGURATION OF THE LIVABLE AREA.

38 (g) GARAGES OR OTHER SPECIFIED VEHICLE ENCLOSURES.

39 (h) DECORATIVE LIGHTING FIXTURES, INCLUDING CARRIAGE LIGHTS.

40 (i) PATIOS, DECKS, PORCHES, HARDSCAPING OR OTHER OUTDOOR
41 IMPROVEMENTS.

42 (j) PAVING OR SURFACING OF DRIVEWAYS.

43 C. A MUNICIPALITY MAY NOT DENY, DELAY OR CONDITIONALLY APPROVE A
44 BUILDING PERMIT OR OTHER ENTITLEMENT BASED ON A REQUIREMENT THAT IS
45 PROHIBITED BY THIS SECTION.

46 D. THIS SECTION DOES NOT SUPERSEDE ANY OF THE FOLLOWING:

1 1. APPLICABLE BUILDING CODES OR FIRE CODES[, INCLUDING
2 SPECIFICATIONS OF BUILDING MATERIALS RELATED TO DURABILITY OR SUITABILITY
3 FOR WEATHER].
4 2. PUBLIC HEALTH AND SAFETY REGULATIONS.
5 3. UTILITY CLEARANCE REQUIREMENTS OR UTILITY EASEMENTS THAT ARE
6 RECORDED AS OF THE EFFECTIVE DATE OF THIS SECTION.
7 4. MINIMUM PARKING REQUIREMENTS.
8 5. DARK SKY ORDINANCES.
9 6. REQUIREMENTS FOR WALLS THAT ARE LOCATED ON A ROAD THAT IS
10 DESIGNATED AS AN ARTERIAL ROAD OR A COLLECTOR STREET AS DESIGNATED BY AN
11 ADOPTED MUNICIPAL GENERAL PLAN.]
12 E. A MUNICIPALITY MAY REQUIRE PREPARING AND SUBMITTING ACCEPTABLE
13 ELECTRIC AND WATER UTILITY PLANS AND SPECIFICATIONS.
14 F. THIS SECTION DOES NOT APPLY TO:
15 1. A SINGLE-FAMILY HOME THAT IS ON EITHER OF THE FOLLOWING:
16 (a) LAND THAT IS DESIGNATED AS A DISTRICT OF HISTORICAL
17 SIGNIFICANCE PURSUANT TO SECTION 9-462.01, SUBSECTION A, PARAGRAPH 10.
18 (b) AN AREA THAT IS DESIGNATED AS HISTORIC ON THE NATIONAL REGISTER
19 OF HISTORIC PLACES.
20 2. LOTS OR PARCELS THAT ARE LOCATED ON EITHER OF THE FOLLOWING:
21 (a) TRIBAL LAND.
22 (b) LAND IN A HIGH NOISE OR ACCIDENT POTENTIAL ZONE AS DEFINED IN
23 SECTION 28-8461 OF A MILITARY AIRPORT OR AN ANCILLARY MILITARY FACILITY AS
24 DEFINED IN SECTION 28-8461.
25 G. FOR THE PURPOSES OF THIS SECTION:
26 1. "ACCESSORY DWELLING UNIT" HAS THE SAME MEANING PRESCRIBED IN
27 SECTION 9-461.18.
28 2. "BUILDING CODE":
29 (a) MEANS THE CONSTRUCTION CODES THAT ARE ADOPTED BY THE
30 MUNICIPALITY.
31 (b) INCLUDES PLUMBING AND MECHANICAL CODES, ELECTRIC CODES,
32 RESIDENTIAL CONSTRUCTION CODES, WILDLAND URBAN INTERFACE CODES AND ENERGY
33 CONSERVATION CODES, HOWEVER DENOMINATED.

34 Enroll and engross to conform

35 Amend title to conform

KEVIN VOLK

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